

(B) Only the political parties recognized by the Election Commission which secured not less than two percent of the votes polled in the last general election to the House of People or the Legislative Assembly of the State shall be eligible to receive the Electoral Bonds.

(C) Electoral Bonds shall be valid for fifteen calendar days from the date of issue.

(D) The Electoral Bond deposited by an eligible political party in its account shall be credited on the same day.

Which of the above statements are correct?

- (a) Only (A) and (B)
- (b) Only (A), (B) and (C)
- (c) Only (B), (C) and (D)
- (d) Only (A), (C) and (D)

R.A.S/R.T.S (Pre) 2018

Ans. (d)

The Electoral Bond scheme was notified by the Government of India on 2nd January 2018.

Electoral Bond may be purchased by a person, who is a citizen of India, or incorporated or established in India. A person being an individual can buy electoral Bonds, either single or joining with other individuals.

Only the Political Parties registered under Section 29A of the Representation of People Act, 1951 and which secured not less than 1% of the votes polled in the last General Election to the House of the People or the legislative assembly of the state, shall be eligible to receive the Electoral Bonds.

It may be noted that the Electoral Bond shall be valid for 15 days from the date of issue and no payment shall be made to any payee Political Party if the Electoral Bond is deposited after the expiry of the validity period. The Electoral Bond deposited by an eligible Political Party in its account shall be credited on the same day.

State Bank of India (SBI) has been authorised to issue and encash Electoral Bonds through its 11 Authorised Branches. The move is expected to bring the much-required transparency in the funding process of the Political Party.

Constitutional Amendment

*Any constitution even if it is made wisely, needs amendments on time and circumstances.

*Indian constitution is a mixture of **rigidity and flexibility**. *It contains the provision of Amendment in **Article 368** of Part-XX of Indian Constitution.

*The Indian constitution can be amended in three different ways.

1. Simple majority
2. Special majority
3. **Special majority** and by the ratification of half of the state legislatures. Constitutional Amendment bill can be introduced in either house of the Parliament. *Constitutional Amendment bill needs to be passed by both the houses of the Parliament separately with special majority and there is no provision for the joint sitting of the houses for the Constitutional Amendment bill.

*Election of President, Representation of States in the Parliament, Supreme and High Court, power of Parliament to amend the constitution etc, are the subjects which require a special majority of the Parliament and ratification by half of the state legislatures for the Amendment. *Any amendment in the provision of the constitution by simple majority in both the houses is **not** included in the amendment under Article 368. *These include the provisions regarding admission or establishment of new states, alteration of names, areas, boundaries etc.

*The **1st Constitutional Amendment Act, 1951** added two new Articles i.e. Article 31A and 31B and also 9th schedule.

***42nd constitutional Amendment Act, 1976** is known as a mini-constitution. ***52nd Amendment Act** is related to the Anti-defection law. ***61st Amendment Act, 1988** reduced the voting age from 21 years to 18 years. ***69th Amendment Act, 1991** gave Delhi the status of National Capital territory of Delhi.

***86th Constitutional Amendment Act, 2002** added Article 21A, i.e. Right to Education, Provision for Free and compulsory education for children from Age 6 years to 14 years. ***The 91st Amendment Act, 2003** amended Articles, 75 and 164 and schedule 10. *It inserted a new Article 361B. *This Amendment restricts the size of the Council of Ministers including the

Prime Minister to aid and advice the President. *That cannot be more than 15% of the total number of members of the House of the People at the union level and the concerned state legislature at the level of State. ***97th Amendment Act 2011** gave constitutional status to the co-operative society. ***100th Constitutional Amendment Act** is related to India-Bangladesh boundary treaty. ***101th Amendment Act** is related to the GST (Goods and Services Tax). **National Commission for Backward Classes** has been given constitutional status through 102nd Amendment Act. 103rd Constitutional Amendment Act, 2019 deals with providing 10 percent reservation in government Jobs and education to the Economically weaker Sections of citizens. *The Doctrine of basic structure of the Constitution refers to the features of the constitution which are inviolable and cannot be amended or altered by the Parliament. *The doctrine of basic structure was given by Supreme Court in the famous **Keshavananda Bharati case 1973**. The **105th Constitutional amendment** amends clause 1 and 2 of Article 342A and also introduces a new clause 3. It also amends Articles 366 (26C) and 338B(9). It is designed to clarify that states can maintain the 'state list' of OBCs. The Constitution (106th Amendment) Act, 2023 is the Latest amendment in the Indian Constitution. It reserves one-third of all seats for women in Lok Sabha, State Legislative Assemblies, and the Legislative Assembly of the National Capital Territory of Delhi, including those reserved for SCs and STs.

1. Assertion (A) : Under Article 368, the Parliament can amend any part of the Constitution.

Reason (R) : The Parliament is the Supreme Legislative body elected by the People of India.

Code :

- (a) Both (A) and (R) are correct, and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are correct, but (R) is not the correct explanation of (A).
- (c) (A) is true, but (R) is false.
- (d) (A) is false, but (R) is true.

U.P.P.C.S. (Pre) 2015

Ans. (a)

Article 368 of the Constitution of India, deals with the power of Parliament to amend the Constitution. Therefore, it says that notwithstanding anything in this Constitution, Parliament may in the exercise of its constituent power amend by way of addition, variation or repeal, any provision of this Constitution in accordance with the procedure laid down in this Article. However, the Parliament cannot amend those provisions that form the 'basic structure' of the Constitution. This was ruled by the Supreme Court in the Kesvananda Bharati Case (1973). The Parliament is the supreme Legislative Body elected by the People of India. Therefore, Parliament has the authority to amend the Constitution. Thus, both assertion (A) and Reason (R) are individually correct and (R) is the correct explanation of (A).

2. As per Article 368 of the Constitution of India, the Parliament may amend any provision of the Constitution by way of :

- 1. Addition**
- 2. Variation**
- 3. Repeal**

Select the correct answer using the code given below :

- (a) 1 and 2 only
- (b) 2 and 3 only
- (c) 1 and 3 only
- (d) 1, 2 and 3

I.A.S. (Pre) 2024

Ans. (d)

Article 368 of the Constitution of India is related to the power of Parliament to amend the Constitution and procedure therefor. Article 368 (1) states that, "Notwithstanding anything in this Constitution, Parliament may in exercise of its constituent power amend by way of addition, variation or repeal any provision of this Constitution in accordance with the procedure laid down in this article." Hence, option (d) is the correct answer.

3. Which one of the following Bills must be passed by each House of the Indian Parliament separately by the special majority?

- (a) Ordinary Bill
- (b) Money Bill
- (c) Finance Bill
- (d) Constitution Amendment Bill

U.P.P.C.S. (Mains) 2007

I.A.S. (Pre) 2003

Ans. (d)

The power and procedure of Parliament to amend the Constitution is laid down in Article 368 of the Constitution. According to Article 368, an amendment to the Constitution may be initiated only by the introduction of a Bill for the purpose in either House of Parliament, and when the Bill is passed in each House by 2/3rd majority of the total membership of that House present and voting, it shall be presented to the President who shall give his assent to the Bill, and thereupon the Constitution shall stand amended in accordance with the terms of the Bill.

4. The Indian Constitution can be amended under the provisions of

- (a) Article 368 (b) Article 360
(c) Article 356 (d) Article 352

U.P.P.C.S. (Mains) 2008

Ans. (a)

See the explanation of the above question.

5. Which Article of the Constitution of India lays down the procedure for the amendment of the Constitution?

- (a) 348 (b) 358
(c) 368 (d) 378

U.P.P.S.C. (GIC) 2010

Ans. (c)

See the explanation of the above question.

6. Amendments to the Constitution may be initiated-

- (a) Only in Lok Sabha
(b) Only in Rajya Sabha
(c) Only in State legislative assemblies
(d) Either House of the Parliament

U.P.U.D.A./L.D.A. (Pre) 2013

Ans. (d)

In India, the amendment to the Constitution can be initiated in either House of the Parliament. It has been laid down under Article 368(2) of the Constitution, but the process requires a special majority of members of both the Houses. In the case of voting, it will be mandatory for the approval of the amendment to be passed by a majority of total membership of that House and a majority of not less than 2/3rd of the members present and voting. In India, the process of constitutional amendment is taken from the constitution of South Africa.

7. A bill for the amendment in Indian Constitution can be presented -

- (a) Only in Lok Sabha
(b) Only in Rajya Sabha

(c) Either in Lok Sabha or Rajya Sabha

(d) In the Supreme Court of India

38th B.P.S.C. (Pre) 1992

Ans. (c)

See the explanation of the above question.

8. An amendment to the Constitution of India can be initiated by the:

1. Lok Sabha 2. Rajya Sabha
3. State Legislatures 4. President

Select the correct answer using the codes given below:

- (a) 1 alone (b) 1, 2 and 3
(c) 2, 3 and 4 (d) 1 and 2

U.P.P.C.S. (Pre) 2024

I.A.S. (Pre) 1999

Ans. (d)

See the explanation of the above question.

9. Under the provisions of the Article 368(2) of the Constitution of India, If a bill comes to Rajasthan Legislative Assembly after passing by parliament of India for resolution to rectify, then

- (A) Resolution can be passed by Assembly.
(B) Resolution can be rejected by Assembly.
(C) No Amendment shall be proposed to such a resolution

Select the correct answer using code given below :

Code -

- (a) (A) only (b) (B) and (C)
(c) (A) and (C) (d) (A), (B) and (C)

R.A.S./R.T.S. (Pre) 2018

Ans. (d)

Article 368(2) of Indian Constitution defines-
An amendment of this Constitution may be initiated only by the introduction of a Bill for the purpose in either House of parliament, and when the bill is passed in each house by a majority of the total membership of that house present and voting, it shall be presented to the President who shall give his assent to the bill and thereupon the constitution shall stand amended in accordance with the terms of the Bill; Provided that if such amendment seeks to make any change in

- (a) Article 54, Article 55, Article 73, Article 162 or Article 241, or Article 279A; or
- (b) Chapter IV of part V, Chapter V of part VI, or Chapter I of part XI, or
- (c) any of the Lists in the Seventh Schedule, or
- (d) the representation of states in Parliament, or
- (e) the provisions of this article.

The amendment shall also require to be ratified by the legislature of not less than one half of the States by resolution to that effect passed by those Legislatures before the Bill making provision for such amendment is presented to the President for assent.

In any state assembly, including Rajasthan, a resolution can be passed or rejected by the state assembly, but no amendment shall be proposed to such a resolution.

- 10. According to the Indian Constitution, the Constitutional amendment of the following topics requires consent of at least half of State legislatures-**
1. Federal provision of the Constitution
 2. Rights of the Supreme Court
 3. The process of Constitutional Amendment
 4. Formation of new States or transformation in the borders and names of the states

Code :

- (a) 1, 2, 3
- (b) 1, 2, 4
- (c) 1, 3, 4
- (d) 2, 3, 4

U.P.P.C.S. Lower (Pre) 2004

Ans. (a)

The Indian Constitution is flexible and adaptable. Amendments can be made to it as per the procedure given in Article 368 of the Constitution as per necessity. Amendments can be made to the Indian Constitution in three types -

1. By a simple majority—There are certain provisions in the Constitution that can be amended by Parliament through a simple majority. Such amendments are not considered constitutional amendments under the purposes of Article 368. For example—changing the names and boundaries of states or creating new states, creating or abolishing Legislative Councils in states, amendments involving increasing or decreasing the salaries of the President, Governors, Supreme Court, and High Court judges are made through a simple majority.

2. By a special majority— Under the procedure of Article 368(2), Parliament, by a special majority in each of its Houses, (a majority of the total membership and a two-thirds majority of members present and voting), can pass a bill to amend most of the articles of the Constitution.

3. By a special majority and approval of the states—

According to the proviso to Article 368(2), there are certain provisions in the Constitution where amendments require the special majority of Parliament along with the approval of at least half of the state legislatures. For example—the election of the President and its procedure, the extent of the executive power of the Union and the states, provisions related to the Supreme Court and High Courts, representation of states in Parliament, the power and procedure of Parliament to amend the Constitution, division of legislative powers between the Union and the states and entries in the lists described in the Seventh Schedule, provisions related to the Goods and Services Tax (GST) Council (Article 279A), etc.

- 11. Which of the following are the matters on which a constitutional amendment is possible only with the ratification of the legislatures of not less than one-half of the states?**

1. Election of the President
2. Representation of the States in Parliament
3. Any of the Lists in the 7th Schedule
4. Abolition of the Legislature Council of a State

Code:

- (a) 1, 2 and 3
- (b) 1, 2 and 4
- (c) 1, 3 and 4
- (d) 2, 3 and 4

I.A.S. (Pre) 1995

70th B.P.S.C. Re-Exam 2024

Ans. (a)

See the explanation of the above question.

- 12. An amendment of the Constitution shall require to be ratified by the legislatures of not less than one-half of the states :**

- (a) If such amendment seeks to make changes in Article 53.
- (b) If such amendment seeks to make changes in Article 239A.
- (c) If such amendment seeks to make changes in Article 243A.
- (d) If such amendment seeks to make changes in Article 279A.

M.P.P.C.S. (Pre) 2024

Ans. (d)

According to the proviso of Article 368(2) of the Constitution, some provisions of the Constitution are as such that their amendment requires special majority of each House of Parliament along with the ratification by the Legislatures of not less than one-half of the States. These provisions are- Election of President (Article 54), Manner of election of President (Article 55), Extent of the executive power of

the Union (Article 73) and States (Article 162), The Union Judiciary (Chapter 4 of Part 5), The High Courts of States (Chapter 5 of Part 6) related provisions, The Legislative relations between the Union and the states (Chapter 1 of Part 11), the entries of Lists in the Seventh Schedule, the representation of States in the Parliament, The power of parliament to amend the Constitution and its procedure (Article 368 itself), High Courts for Union Territories (Article 241) and the provisions related to the Goods and Services Tax Council (Article 279A). Hence, the option (d) is the correct answer.

13. Consider the following statements

1. An amendment to the Constitution of India can be initiated by introduction of a Bill in the Lok Sabha only.
2. If such an amendment seeks to make changes in the federal character of the Constitution, the amendment also requires to be ratified by the legislatures of all the States of India.

Which of the statements given above is/are correct?

- (a) Only 1 (b) Only 2
(c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre) 2013

Ans. (d)

See the explanation of the above question.

14. Which is unmatched in the context of Constitutional Amendment Procedure?

- i. Extension of executive powers of Centre and State.
- ii. Supreme and High Court.
- iii. Election of President.
- iv. Qualification of President.
- v. Condition of the Office of the President.
- vi. Tenure of President.
- vii. Distribution of Legislative Power in Centre and State.

viii. States representation in Parliament.

- (a) i ii iii (b) ii iii iv
(c) iii iv v (d) iv v vi
(e) vi vii viii

Chhattisgarh P.C.S. (Pre) 2017

Ans. (d)

Constitutional Amendment Procedure under Article 368 does not cover the Qualification of the President, Condition of the Office of the President and tenure of the President. All the remaining statements are covered under the Constitutional Amendment Procedure.

15. Which of the following Constitution Amendments was the first Constitutional Amendment, which was ratified by the State Legislatures according to the requirements of the provision of the Article 368(2) of the Constitution?

- (a) First Constitutional Amendment, 1951
(b) Second Constitutional Amendment, 1952
(c) Third Constitutional Amendment, 1954
(d) Fourth Constitutional Amendment, 1954

M.P.P.C.S. (Pre), 2021

Ans. (c)

Third Constitutional Amendment, 1954 was the first constitutional amendment, which was ratified by the State Legislatures according to the requirements of the provision of Article 368(2) of the Constitution. This amendment re-enacted entry 33 of the concurrent list in the Seventh Schedule of the constitution.

16. In the event of the Upper House rejecting a Constitutional Amendment Bill passed by the Lower House

- (a) The Bill will have to be dropped
(b) A joint sitting of the both Houses of Parliament may be convened to consider and pass the Bill
(c) The Bill shall be deemed to have been passed by both the Houses of the Parliament if the Lok Sabha passes it again by a two-third majority.
(d) The Bill shall be deemed to have been passed by both the Houses of the Parliament despite the disapproval of the Bill by the Upper House.

U.P.P.C.S (Mains) 2004

Ans. (a)

The Constitutional Amendment Bill should be passed by both the Houses of the Parliament with a special majority. In the event of the Upper House rejecting a Constitutional Amendment Bill passed by the Lower House, the Bill will have to be dropped because there is no provision for a joint sitting of both the Houses of Parliament to consider the proposals for constitutional amendment.

17. Consider the following statements:

1. A bill amending the Constitution requires a prior recommendation of the President of India.
2. When a Constitution Amendment bill is presented to the President of India, it is obligatory for the President of India to give his/her assent.
3. A Constitution Amendment Bill must be passed by both the Lok Sabha and the Rajya Sabha by a special majority and there is no provision for joint sitting.

Which of the statements given above are correct?

- (a) 1 and 2 only (b) 2 and 3 only
(c) 1 and 3 only (d) 1, 2 and 3

I.A.S. (Pre) 2022

Ans. (b)

Article 368(2) says that an amendment of constitution may be initiated in either house of parliament. When a constitution amendment bill is presented to the President of India, it is obligatory for the President of India to give his/her assent. A constitutional Amendment Bill must be passed by both the Lok Sabha and the Rajya Sabha by a special majority, and there is no provision for joint sitting. Thus statements (2) and (3) are correct.

18. Consider the following statements regarding Constitutional Amendments:

- (i) In Article 368, two methods of Constitutional Amendment are mentioned.
- (ii) Constitutional Amendment Bill can be initiated only in Lok Sabha.
- (iii) In case of any dispute between two Houses of Parliament on Constitutional Amendment Bill, Joint sitting of both Houses can be summoned.
- (iv) The President can not veto a Constitutional Amendment Bill.

Which of the statements given above are correct?

- (a) (i) and (ii) only
- (b) (i) and (iv) only
- (c) (ii) and (iv) only
- (d) (ii), (iii), and (iv) only

R.A.S./R.T.S.(Pre) 2013

Ans. (b)

There are two methods of Constitutional Amendment mentioned in Article 368(2) of the Constitution-

(1) First, an amendment to the Constitution may be initiated only by the introduction of a Bill for the purpose in either House of Parliament, and when the Bill is passed in each House by a majority of the total membership of that House and by a majority of not less than two-thirds of members present and voting, it shall be presented to the President who shall give his assent to the Bill, and thereupon the Constitution shall stand amended in accordance with the terms of the Bill.

(2) The amendment shall also require ratification by the Legislatures of not less than one-half of the States by resolution to that effect passed by those Legislatures before the Bill making provision for such amendment in the subject enumerated in Article 368 of the Constitution is presented to the President for his/her assent. Constitutional amendment Bill can be initiated in either House of the Parliament. There is no provision for joint sitting of both House with regard to a Constitutional Amendment Bill.

19. The President's power to veto a Bill for amendment of the Constitution has been taken away by substituting the word 'shall give his assent' by which amendment?

- (a) 44th Amendment
- (b) 23rd Amendment
- (c) 24th Amendment
- (d) 42nd Amendment

R.A.S./R.T.S. (Pre) (Re. Exam) 2013

Ans. (c)

According to Article 74, the President shall act in accordance with the advice of the council of ministers. The president power to Veto a bill for amendment of the constitution was taken away by introducing the term 'shall give his assent' by the 24th constitutional amendment. It was made compulsory for the President to give his assent to the constitutional amendment bill. The 44th Amendment Act 1978 it was provided that the President may require the council of Ministers to reconsider such advice, either generally or otherwise, and the President shall act in accordance with the advice tendered after such reconsideration.

20. Which of the following statement is correct regarding Article 368 of the Constitution of India?

- (i) Article 368 was amended by the 24th Constitution Amendment Act, 1971.
- (ii) Article 368 was amended by the 101st Constitution Amendment Act, 2016.

Codes:

- (a) (i) is true and (ii) is false
- (b) (i) is false and (ii) is true
- (c) Both (i) and (ii) are true
- (d) Both (i) and (ii) are false

M.P.P.C.S. (Pre) 2020

Ans. (c)

Article 368 in Part XX of the Constitution deals with the powers of Parliament to amend the Constitution and its procedure. It states that the Parliament may in exercise of its constituent power amend by way of addition, variation or repeal any provision of this Constitution in accordance with the procedure laid down in Article 368.

24th Constitution Amendment Act, 1971, amended two provisions of the Constitution-

- 1- Affirmed the Power of Parliament to amend any part of the Constitution including fundamental rights.
- 2- Made it compulsory for the President to give assent to a Constitutional Amendment Bill.

Article 368 was amended by the 101st Constitution Amendment Act, 2016, to paved the way for the introduction of the Goods and Service tax in the country.

Hence both (i) and (ii) are true.

21. When was the first Bill for the amendment of the Indian Constitution presented?

- (a) 1950 (b) 1951
- (c) 1955 (d) 1958

38th B.P.S.C. (Pre) 1992

Ans. (b)

The first amendment Bill to the Indian Constitution was presented in 1951 through which Articles 15, 19, 85, 87, 174, 176, 341, 342, 372, 376 were amended and two new Articles 31A and 31B and 9th Schedule were added to the Constitution.

22. The First Constitution Amendment Bill passed in 1951 was related to

- (a) Security of the country
- (b) Security of the Prime Minister
- (c) Protection of agrarian reforms in certain States
- (d) Scheduled castes and Scheduled tribes

U.P.P.C.S. (Mains) 2009

Ans. (c)

The first Constitution Amendment 1951 added two new Articles 31A and 31B; and 9th Schedule to the Constitution for protection of agrarian reforms in certain States.

23. The Ninth Schedule to the Indian Constitution was added by:

- (a) First Amendment (b) Eighth Amendment
- (c) Ninth Amendment (d) Forty Second Amendment

I.A.S. (Pre) 2003

Ans. (a)

See the explanation of the above question.

24. Which of the following schedule of the Constitution of India was added to the Constitution by the first Constitutional Amendment?

- (a) Sixth (b) Tenth
- (c) Ninth (d) Seventh
- (e) Question not attempted

Raj. P.C.S. (Pre) 2023

Ans. (c)

The Constitution as adopted on November 26, 1949, contained a Preamble, 395 Articles and 8 Schedules. The Ninth Schedule was added to the Constitution by the Constitution (First Amendment) Act, 1951. The object

behind adding the schedule was to protect certain Acts and regulations from being declared void on the grounds that they violate the fundamental rights provided under Part III of the Constitution. The Tenth Schedule which contains provisions relating to the disqualification of the members of Parliament and State Legislatures on the ground of defection, was added by the Constitution (Fifty-second Amendment) Act, 1985. The Sixth Schedule deals with administering Tribal Areas in the States of Assam, Meghalaya, Tripura, and Mizoram and the Seventh Schedule includes three lists (Union, State and Concurrent) for determining the legislative authority for various subject matters.

25. In India, which one of the following Constitutional Amendments was widely believed to be enacted to overcome the judicial interpretations of the Fundamental Rights?

- (a) 1st Amendment (b) 42nd Amendment
- (c) 44th Amendment (d) 86th Amendment

I.A.S. (Pre.) 2023

Ans. (a)

The First Amendment was passed in 1951 by the Provisional Parliament, members of which had just finished drafting the Constitution as part of the Constituent Assembly. The First Amendment Act amended Articles 15, 19, 85, 87, 174, 176, 341, 342, 372 and 376. In Article 15, Clause 4 was added to make special provisions for the backward classes or for the Scheduled Castes and Scheduled Tribes. Certain restrictions were added in Article 19 by including the terms 'public order', 'friendly relations with foreign states, and 'incitement to an offence'. This amendment also added the Ninth Schedule to protect the land reforms and other laws included in it from the judicial review by adding Articles 31A and 31B. A number of rulings by the Supreme Court and High Court that declared certain sections of criminal legislation, regulations pertaining to the press, and public safety to be incompatible with the constitutional right to free expression served as the immediate impetus for the modifications.

26. "The age of a Judge of the Supreme Court of India shall be determined by such authority and in such manner as Parliament may by laws provide" inserted by

- (a) 15th Constitution Amendment
- (b) 16th Constitution Amendment

- (c) 17th Constitution Amendment
(d) 18th Constitution Amendment

R.A.S/R.T.S (Pre) 2018

Ans. (a)

The 15th Constitutional Amendment Act, 1963 says, "The age of Judge of the Supreme Court of India shall be determined by such authority and in such manner as Parliament may by law provide."

16th Constitutional Amendment Act, 1963 (herein after the Bill) was informally referred to as the 'Anti-secession Bill' It was designed to prevent the local political leaders in different regions within India from using the electoral process to peacefully propagate secession from the union. The 17th Constitutional Amendment Act of 1964 deals with amendment to Article 31-A

The 18th Constitutional Amendment Act of 1966 amended Article 3 of the Constitution in Order to Clarify the "State" in clause (a) to (e) of that article.

27. When was the special rights and privy purse enjoyed by the Indian Princely States abolished?

- (a) 1950 (b) 1949
(c) 1962 (d) 1971

M.P.P.C.S. (Pre) 2020

Ans. (d)

Privy purse conferred special status to the ruling families of former princely states. It continued to be paid to royal families until 26th amendment in 1971; by which all their privileges and advances from the central government ceased to exist.

28. Match the following Constitutional Amendments.

List - I

(A) 13th Amendment

(B) 18th Amendment

(C) 39th Amendment

(D) 52nd Amendment

List - II

(i) Nagaland

(ii) Anti-defection law

(iii) Clarified the 'state'

(iv) The election of President
Speaker and Prime
Minister cannot be
challenged.

Code :

- | | | | |
|-----------|-------|------|-------|
| A | B | C | D |
| (a) (ii) | (iv) | (i) | (iii) |
| (b) (iv) | (iii) | (ii) | (i) |
| (c) (iii) | (ii) | (i) | (iv) |

- (d) (i) (iii) (iv) (ii)
(e) (i) (iii) (ii) (iv)

Chhattisgarh P.C.S. (Pre) 2014

Ans. (d)

The matched list is as follows :

- | | | |
|----------------------------|---|--|
| 13 th Amendment | - | Nagaland |
| 18 th Amendment | - | Clarification of the term 'state' |
| 39 th Amendment | - | The election of President, Vice President Speaker and Prime Minister cannot be challenged. |
| 52 nd Amendment | - | Anti-defection law |

29. Match List-I with List-II and select the correct answer from the code given below:

List-I

A. Curtailment of the power of judicial review

B. Abolition of Right to property as a fundamental right

C. Lowering the voting age from 21 to 18

D. Addition of the word 'Secular' in the preamble

List-II

1. 61st Amendment

2. 42nd Amendment

3. 38th Amendment

4. 44th Amendment

Code :

- | | | | |
|-------|---|---|---|
| A | B | C | D |
| (a) 1 | 2 | 4 | 3 |
| (b) 2 | 4 | 1 | 3 |
| (c) 3 | 4 | 1 | 2 |
| (d) 4 | 1 | 3 | 2 |

U.P.P.C.S. (Pre) 2017

Ans. (c)

The match is as follows :

- | | | |
|---|---|----------------|
| List-I | | List-II |
| Curtailment of the power of judicial review | - | 38th Amendment |
| Abolition of Right to property as a fundamental right | - | 44th Amendment |
| Lowering the voting age from 21 to 18 | - | 61st Amendment |
| Addition of the word 'Secular' in the preamble | - | 42nd Amendment |

30. Match List-I with List-II and select the correct answer using the codes given below the lists:

List-I (Amendments to the Constitution)

- A. The Constitution (Sixty-ninth Amendment) Act, 1991
- B. The Constitution (Seventy-fifth Amendment) Act, 1994
- C. The Constitution (Eightieth Amendment) Act, 2000
- D. The Constitution (Eighty-third Amendment) Act, 2000

List-II

- 1. Establishment of state level Rent Tribunals
- 2. No reservation for Scheduled Castes in Panchayats in Arunachal Pradesh
- 3. Constitution of Panchayats at Villages or at another local level
- 4. Accepting the recommendations of the Tenth Finance Commission
- 5. Accorded the status of National Capital Territory to Delhi.

Code :

	A	B	C	D
(a)	5	1	4	2
(b)	1	5	3	4
(c)	5	1	3	4
(d)	1	5	4	2

I.A.S. (Pre) 2001

Ans. (a)

The matched list is as follows:

The Constitution (69 th Amendment) Act, 1991	- Delhi was given the status of National Capital Territory
The Constitution (75 th Amendment) Act, 1994	- Establishment of State-level Rent Tribunals
The Constitution (80 th Amendment) Act, 2000	- Accepting the recommendations of 10 th finance commission
The Constitution (83 rd Amendment) Act, 2000	- No reservation for Scheduled Castes in Panchayats in Arunachal Pradesh because the state is inhabited fully by Scheduled Tribes.

31. Match List-I with List-II and select the correct answer using the code given below the lists:

List-I

(Provision of Constitutional Amendment)

A. Right to form Co-operative societies

under Article 19(1)(c)

List-II

(Number of Constitutional Amendment)

i. 81st Amendment, 2000

B. Protection of SC/ST reservation in filling backlog of vacancies

C. Formation of National Judicial Appointments Commission

D. Limiting the size of the Council of Ministers

ii. 91st Amendment, 2003

iii. 97th Amendment, 2011

iv. 99th Amendment, 2014

Code :

	A	B	C	D
(a)	(iii)	(ii)	(iv)	(i)
(b)	(i)	(iv)	(ii)	(iii)
(c)	(iii)	(i)	(iv)	(ii)
(d)	(ii)	(iii)	(i)	(iv)

R.A.S./R.T.S. (Pre) (Re. Exam) 2013

Ans. (c)

The correctly matched list is as follows:

Right to form Co-operative societies under Article 19(1) (c) - 97th Amendment, 2011

Protection of SC/ST reservation in the filling backlog of vacancies - 81st Amendment, 2000

Formation of National Judicial Appointments Commission - 99th Amendment, 2014

Limiting the size of the Council of Ministers - 91st Amendment, 2003

Note: It is notable that a Bench of 5 Judges, presided by Justice J.S. Khehar on 16 October, 2015, declared NJAC and 99th Amendment as void.

32. Match the Amendments with their year of implementation:

A. 42nd Amendment 1. 1985

B. 52nd Amendment 2. 2011

C. 86th Amendment 3. 1976

D. 96th Amendment 4. 2002

Select the correct answer from the codes given below :

Code :

	A	B	C	D
(a)	2	1	3	4
(b)	4	3	2	1
(c)	1	2	3	4
(d)	3	1	4	2

U.P.P.C.S. (Pre) 2024

Ans. (d)

The correct matches of the Constitutional Amendments to their years, in the question is as follows,

42nd Constitutional Amendment - 1976 (effective from 3.1.1977)

52nd Constitutional Amendment - 1985 (effective from 1.3.1985)

86th Constitutional Amendment - 2002 (effective from 1.4.2010)

96th Constitutional Amendment - 2011 (effective from 23.9.2011)

Note - The question asks to match the amendments to their year of implementation, while the year in the question are year of enactment/notification of the amendments.

33. Which of the following Constitutional Amendment Acts was termed as Mini Constitution?

- (a) 42nd (b) 44th
(c) 46th (d) 50th

47th B.P.S.C. (Pre) 2005

Ans. (a)

Several provisions of the Constitution were altered, and several new provisions were added by 42nd Constitutional Amendment in 1976. So it is also termed as mini Constitution. The main objective of 42nd Constitutional Amendment was to overcome the difficulties arising from the decision of the Supreme Court in the Keshavananda Bharati Case 1973. The Supreme Court made it clear in its judgment that certain features of the Constitution are so essential that they cannot be abrogated from the Constitution of India.

34. Consider the following statements regarding the 42nd Amendment to the Constitution of India :

1. It added three words to the Preamble—‘Socialist’, ‘Secular’ and ‘Integrity’.
2. It added eight Fundamental Duties to the Constitution.
3. It added new Directive Principles, i.e., Article 39A, Article 43A and Article 47.
4. It granted power to the President, in consultation with the Election Commission, to disqualify members of the State Legislatures.

Which of the above statements are incorrect ?

- (a) 1 and 2 (b) 3 and 4
(c) 2 and 3 (d) 1 and 4

69th B.P.S.C. (Pre) 2023

Ans. (c)

The 42nd Constitutional Amendment Act of 1976 is popularly known as “mini constitution”. This amendment amended the Preamble to the Constitution, 40 Articles and the seventh schedule, and added 14 new Articles and two new parts to the Constitution. Significantly, it added 10 Fundamental Duties to the Constitution in Part 4A on the recommendations of Swaran Singh Committee. It also added three new words (i.e. socialist, secular and integrity) in the Preamble.

35. Which of the following Constitutional Amendment is related to the Fundamental Duties?

- (a) 42nd (b) 44th
(c) 46th (d) 50th

U.P. Lower Sub. (Pre) 2003

Ans. (a)

The fundamental duties of citizens were added to the Constitution by the 42nd Amendment in 1976 on the recommendation of Swaran Singh committee. It has been mentioned under Part IV-A, Article 51(A) of the Indian Constitution. Earlier, the total number of fundamental duties were 10, at present, it is 11. Provisions relating to fundamental duties have been derived from the Constitution of the Soviet Union.

36. What is not true about the 44th Constitutional Amendment?

- (a) This amendment was brought in by Janata Government (1977-79)
(b) With this constitutional amendment, changes in 42nd Constitutional Amendment was made
(c) Through this amendment first time it was made clear in Constitution that President cannot act against the advice of Council of Ministers
(d) As per this amendment President can return the advice of Council of Ministers for reconsideration as many times as he want till he is satisfied

Chhattisgarh P.C.S. (Pre) 2021

Ans. (c) & (d)

The 44th Constitutional Amendment Act, 1978 was brought in by Janata Party Government. The amendment aimed to undo several changes that have been made by the 42nd Amendment. As per 42nd Amendment, Article 74 was amended, and it was explicitly stipulated that "the President shall act in accordance with advice of the council of Ministers. Thus through, this

amendment (42 CAA) it was made clear in constitution that president cannot act against the advice of the council of ministers. Through 44th Constitutional Amendment, President can return only once the advice of council of Ministers for reconsideration. Thus both option (c) and (d) is wrong.

37. Which one of the following amendments to the Indian Constitution empowers the President to send back any matter for reconsideration by the Council of Ministers?

- (a) 39th (b) 40th
(c) 42nd (d) 44th

I.A.S. (Pre) 2002

Ans. (d)

See the explanation of the above question.

38. Consider the following statements:

- 1. The 44th Amendment to the Constitution of India introduced an Article placing the election of the Prime Minister beyond judicial review.**
- 2. The Supreme Court of India struck down the 99th Amendment to the Constitution of India as being violative of the independence of judiciary.**

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre) 2019

Ans. (b)

In 1975, Parliament passed the 39th amendment to the constitution which removed the authority of Supreme Court to adjudicate petitions regarding elections of the president, vice president, Prime Minister and Speaker of Lok Sabha. This amendment was nullified by 44th Constitutional Amendment Act, 1978. Hence Statement 1 is wrong.

The Supreme Court of India struck down the 99th amendment to the constitution (2014). This amendment created a body named NJAC- National judicial appointment commission. S.C. struck down NJAC as it impinges upon the principles of 'independence of judiciary' as well as "separation of powers".

39. Which Constitutional Amendment Act dealing with National Judicial Appointments Commission, was declared unconstitutional by the Constitution Bench of the Supreme Court?

- (a) 98th Constitutional Amendment Act
(b) 97th Constitutional Amendment Act

- (c) 99th Constitutional Amendment Act
(d) 100th Constitutional Amendment Act

R.A.S./R.T.S. (Pre) 2021

Ans. (c)

The Ninety-ninth Amendment of the Constitution of India, officially known as The Constitution (Ninety-ninth Amendment) Act, 2014, formed a National Judicial Appointments Commission. On October 15, 2015, a constitutional bench comprising five judges declared the National Judicial Appointments Commission (NJAC) Act unconstitutional on the plea that it would affect the independence of the judiciary. Hence option (c) is correct.

40. Which of the following has banned floor crossing by the member elected on a party ticket to the legislature?

- (a) 52nd Constitutional Amendment Act
(b) Representation of Public Law
(c) 42nd Constitutional Amendment
(d) 44th Constitutional Amendment

U.P.P.C.S. (Pre) 1996

U.P.P.C.S. (Pre) 1992

Ans. (a)

Anti-Defection Law was introduced by 52nd Constitution Amendment Act, 1985, by adding 10th Schedule in the Constitution of India. It was further amended by 91st Constitutional Amendment Act, 2003.

41. Which one of the following Constitutional Amendments introduced the anti-defection provision in the Constitution for the first time?

- (a) 54th Amendment (b) 53rd Amendment
(c) 52nd Amendment (d) 51st Amendment

U.P.P.C.S. (Mains) 2008

M.P.P.C.S. (Pre) 2015

Ans. (c)

See the explanation of the above question.

42. 52nd Constitution Amendment is related to—

- (a) Defection (b) Reservation
(c) Election (d) Protection of minorities

U.P. U.D.A./L.D.A. (Pre) 2006

Ans. (a)

See the explanation of the above question.

43. In which Amendment was the evil of defections from the political parties in India enacted?

- (a) 52nd Amendment (b) 54th Amendment

- (c) 56th Amendment (d) 58th Amendment

Jharkhand P.C.S. (Pre) 2016

Ans. (a)

See the explanation of the above question.

44. The authoritative text of the Indian Constitution in Hindi was authorized to be published by which of the following constitutional amendments?

- (a) 57th Amendment, 1987
(b) 58th Amendment, 1987
(c) 59th Amendment, 1988
(d) 60th Amendment, 1988

U.P.R.O./A.R.O. (Pre) 2016

Ans. (b)

Under 58th Amendment Act, 1987, the authoritative text of the Indian Constitution in Hindi was authorized to be published as there has been a general demand for the publication of the authoritative text of the Constitution in Hindi incorporating therein all the subsequent amendments.

45. Which one of the following Amendments to the Constitution is related to the Lowering of the age of voters?

- (a) 61st Amendment (b) 44th Amendment
(c) 42nd Amendment (d) 24th Amendment

U.P.P.C.S. (Mains) 2014

Ans. (a)

61st Constitutional Amendment Act, 1988 reduced the age for the Right to Vote from 21 to 18 years. It came into force on March 28, 1989.

46. Which Constitution Amendment Act reduced the voting age from 21 years to 18 years?

- (a) 66th Amendment (b) 62nd Amendment
(c) 61st Amendment (d) 63rd Amendment

U.P.P.C.S. (Pre) 2021

M.P.P.C.S. (Pre) 2014

Chhattisgarh P.C.S. (Pre) 2022

Ans. (c)

The Constitution (Sixty-first Amendment) Act, 1989, lowered the voting age of elections to the Lok Sabha and to the Legislative Assemblies of States from 21 years to 18 years. Lowering of the voting age provided to the unrepresented youth of the country an opportunity to express their feelings and help them to become a part of the political process.

47. By Which one of the following Constitutional Amendments Delhi became 'National Capital Region'?

- (a) 61st Amendment (b) 69th Amendment
(c) 71st Amendment (d) 79th Amendment

U.P.P.C.S. (Mains) 2009

Ans. (b)

The Constitution (69th Amendment) Act, 1991 provided the status of the National Capital Region to Delhi.

48. By which amendment of the Constitution, 'Delhi' has been made National Capital Region?

- (a) 73rd (b) 69th
(c) 75th (d) 70th

U.P.P.C.S. (Pre) 2022

Ans. (b)

See the explanation of the above question.

49. Which one of the following, Amendments of the Constitution of India Converts the Union Territory of Delhi into the National Capital Region of Delhi?

- (a) 69th Amendment (b) 70th Amendment
(c) 73rd Amendment (d) 74th Amendment

U.P. Lower Sub. (Pre) 2015

Ans. (a)

See the explanation of the above question.

50. The 79th Amendment of the Indian Constitution is related to –

- (a) Centre-State Relations
(b) Establishment of two political parties
(c) Fundamental Rights
(d) Reservation of SCs and STs in the Lok Sabha and State Legislative Assemblies

U.P.P.C.S. (Mains) 2008

Ans. (d)

79th Constitutional Amendment (1999), extended the reservation period for Scheduled Castes, Scheduled Tribes and Anglo-Indians in Lok Sabha and State Legislative Assemblies for 10 years. It was again extended for 10 years by 95th Constitutional Amendment Act, 2009. A provision has been made by 'The Constitution (one hundred and fourth Amendment) Act, 2019 to not to extend the provision for nomination of Anglo-Indian Community in the Lok Sabha and the Legislative Assemblies of the states beyond the stipulated date (25 January 2020).

51. Which Constitutional Amendment makes provision for the reservation of seats for SC's and STs in Lok Sabha and State Assemblies?

- (a) 76th (b) 77th
(c) 78th (d) 79th

U.P. Lower Sub. (Pre) 2013

Ans. (d)

See the explanation of the above question.

52. The 93rd Constitution Amendment Bill deals with the:

- (a) Continuation of reservation for backward classes in government jobs.
(b) Free and compulsory education for all children between the age of 6 and 14 years
(c) Reservation of 30 percent posts for women in government recruitments
(d) Allocation of more number of Parliamentary seats for recently formed States

I.A.S. (Pre) 2002

Ans. (b)

The 93rd Constitutional Amendment Bill deals with free and compulsory education for all children between the age of 6-14 years. Through this amendment, a new Article 21-A was added to the Constitution under Fundamental Rights, and Article 45 was amended under the Directive Principles of State Policy; and a new Article 51-A(k) was added to Fundamental Duties. This amendment bill was enacted under 86th Constitutional Amendment Act, 2002.

53. 'Right to Education' introduced through 86th Amendment came into force:

- (a) In 2002 (b) In 2004
(c) In 2008 (d) In 2010

Uttarakhand P.C.S. (Pre) 2012

Ans. (d)

The 86th Constitutional Amendment Act, 2002 making education a Fundamental Right through insertion a new Article 21A. The Right of Children to Free and Compulsory Education Act, 2009 enables the implementation of Fundamental Right, was passed by the Parliament in 2009. Both the Constitutional Amendments and the new Law came into force on 1st April, 2010.

54. Which Constitutional Amendment has added Fundamental Right to Free and Compulsory Education of Children between the age of 6 to 14 years?

- (a) By 68th Amendment (b) By 85th Amendment
(c) By 86th Amendment (d) By 87th Amendment

M.P.P.C.S. (Pre) 2025

Ans. (c)

See the explanation of the above question.

55. Through which Amendment of the Constitution has the Right to Education became a Fundamental Right?

- (a) First Constitutional Amendment
(b) Forty-second Constitutional Amendment
(c) Forty-Fourth Constitutional Amendment
(d) Eighty-sixth Constitutional Amendment

M.P. P.C.S. (Pre) 2023

Ans. (d)

See the explanation of the above question.

56. Which Amendment to the Constitution inserted a new Article 21 A in the Constitution providing Right to Education?

- (a) 86th Amendment (b) 87th Amendment
(c) 88th Amendment (d) 89th Amendment

U.P. P.C.S. (Mains) 2006

Ans. (a)

According to 86th Constitutional Amendment Act, 2002 a new Article 21-A was added to the constitution which made Right to Education a fundamental right for children in the age group of 6-14 years. This Article reads: "The State shall provide free and compulsory education to all children between the age of six to fourteen years in such manner as the State may, by law, determine."

57. Right to Education has been included into the Fundamental Rights by the

- (a) Constitution (93th Amendment) Act, 2005
(b) Constitution (71th Amendment) Act, 1992
(c) Constitution (103th Amendment) Act, 2019
(d) Constitution (86th Amendment) Act, 2002

U.P.P.C.S. (Pre) 2022

Ans. (d)

See the explanation of the above question.

58. Which Constitutional Amendment bifurcated the Combined National Commission for Scheduled Castes and Scheduled Tribes into two separate bodies?

- (a) 42nd Amendment (b) 44th Amendment
(c) 89th Amendment (d) 93rd Amendment

Jharkhand P.C.S. (Pre) 2016

Ans. (c)

The National Commission for Scheduled Castes and Scheduled Tribes was bifurcated into the National commission for Scheduled Castes and the National Commission for Scheduled tribes through the 89th Constitutional Amendment Act, 2003. The two commissions have been constituted under Article 338 and Article 338A, respectively.

59. Which of the following Constitutional Amendment Acts seeks that the size of the Councils of Ministers at the Centre and in a State must not exceed 15 percent of the total number of members of the Lok Sabha and the total number of members of the Legislative Assembly of that State, respectively?

- (a) 91st (b) 93rd
(c) 95th (d) 97th

I.A.S. (Pre) 2007

Ans. (a)

The number of ministers in the Council of Ministers was not mentioned in the Constitution till 2003, so it was fully dependent upon the discretion of the Prime Minister or the Chief Minister. However by amending Article 75 and Article 164 of the Constitution by 'The Constitution (Ninety-first Amendment) Act, 2003' it was made in the Constitution that the total number of ministers including the Prime Minister or Chief Minister of the state, in the Council of Ministers shall not exceed fifteen percent of the total number of members of the Lok Sabha or Legislative Assembly of that State.

60. Which of the following Constitutional Amendments restricts the total number of Ministers, including the Prime Minister in the Council of Ministers shall not exceed fifteen percent of the total number of members of the House of the People?

- (a) 86th Amendment (b) 52nd Amendment
(c) 91st Amendment (d) 73rd Amendment

Chhattishgarh P.C.S. (Pre) 2024

Ans. (c)

See the explanation of the above question.

61. The 91st Amendment of the Indian Constitution provides

- (a) ceiling of the size of Council of Ministers
(b) no enhancement of seats of Lok Sabha and Vidhan Sabha till 2026
(c) bifurcation of the National Commission of SCs and STs.
(d) None of the above

M.P.P.C.S. (Pre.) 2022

Ans. (a)

The Constitution (Ninety-First Amendment) Act, 2003, restricted the size of council of ministers to 15% of legislative members with objective to strengthen Anti Defection laws. It provides the total number of Ministers, including the Prime Minister, in the Council of Ministers shall not exceed fifteen percent of the total number of members of the House of the People by inserting Article 75(1A). The amendment also made same provision regarding Council of Ministers

in Legislative Assembly of states under Article 164(1A). It also provided that a member of that House disqualified under paragraph 2 of the Tenth Schedule shall also be disqualified to be appointed as a Minister.

62. By which Constitutional Amendment the number of Central Ministers has been limited to 15% of the total number of the members of the Lok Sabha?

- (a) 91st Amendment (b) 92nd Amendment
(c) 90th Amendment (d) None of the above

U.P.P.C.S. (Pre) (Re. Exam) 2015

U.P. P.C.S. (Mains) 2017

Ans. (a)

See the explanation of the above question.

63. Which of the following Amendments of the Indian Constitution limits the size of the Union Ministry?

- (a) 78th amendment (b) 91st amendment
(c) 88th amendment (d) 90th amendment

U.P.P.C.S. (Mains) 2004

Ans. (b)

See the explanation of the above question.

64. By which Constitutional Amendment OBCs have been given 27 percent reservation in the admission to educational institutions?

- (a) 92nd (b) 93rd
(c) 94th (d) 96th

Uttarakhand P.C.S. (Pre) 2012

Ans. (b)

The 93rd Amendment Act (passed in 2006) provided OBCs with 27% reservation in admission to educational institutions.

65. 97th Constitutional Amendment Act of 2012 is concerned with.....

- (a) Free and compulsory education for children upto the age of 14 years
(b) Organization and working of co-operative societies
(c) Stringent measures to deal with terrorism
(d) Provision of Lokpal to prevent corruption

R.A.S./R.T.S.(Pre) 2012

Ans. (b)

The 97th Amendment of the Constitution was notified on January 12, 2012 to provide Constitutional status to Cooperative organizations. The word 'Cooperative Societies' in Article 19(1)(C) of Part-III, Article 43(B) in Part-IV and Part IX-B (Article 243ZH to 243ZT) was added by this amendment of the Constitution which involves encouraging voluntary organizations and professional management, function and formation and operation of cooperative organizations.

66. By which of the following amendments of the Indian Constitution, the term 'Co-operative Societies' was added in Article 19(1) (c)?

- (a) 42nd Amendment Act, 1976
- (b) 73rd Amendment Act, 1993
- (c) 97th Amendment Act, 2011
- (d) 36th Amendment Act, 1975

U.P.P.C.S. (Mains) 2016

Ans. (c)

See the explanation of the above question.

67. According to Article 243(ZJ) of the Indian Constitution, the maximum number of directors of a cooperative society can be –

- (a) 21
- (b) 15
- (c) 11
- (d) 7

U.P.P.C.S. (Pre) 2016

Ans. (a)

According to Article 243 (ZJ) of the Indian Constitution, the Board of co-operative society consists of such numbers of Directors as provided by the Legislature of State, but the maximum number of Directors shall not exceed twenty-one.

68. The 100th Constitutional Amendment Act, 2015 was brought for exchange of territories between India and Bangladesh. What is not true in reference to this?

- (a) Under this, India transferred 51 enclaves to Bangladesh whereas Bangladesh transferred 111 enclaves to India.
- (b) Under this, 6.1 km. undemarcated boundary land was demarcated.
- (c) Due to this, territories of four States got changed.
- (d) None of the above

Chhattisgarh P.C.S. (Pre) 2022

Ans. (a)

The Constitution 100th Amendment Act, 2015 ratified the 1974 Land Boundary Agreement between India and Bangladesh, enabling the exchange of enclaves and the transfer of the territories, specifically 111 Indian enclaves to Bangladesh and 51 Bangladesh enclaves to India, Therefore, the Statement in option (a) is not correct. Rest of the options are correct.

69. Which of the following constitution (Amendment) Act provides for goods and Services Tax (G.S.T.)?

- (a) The Constitutions (Ninety Eighth) Amendment Act. 2012
- (b) The Constitutions (Ninety Eighth) Amendment Act. 2014

(c) The Constitutions (One-Hundredth and First) Amendment Act. 2015

(d) The Constitutions (One Hundred and First) Amendment Act. 2016

Chhattisgarh P.C.S. (Pre) 2019

Ans. (d)

The Constitution Amendment (101st) Act, 2016 introduced a national GST in India on 1st July 2017.

70. Match List-I with List-II and select the correct answer from the code given below the lists.

List-I (Act)	List-II (Amendment)
A. The Constitution (Ninety Fourth Amendment) Act, 2006	1. Amendment in Article 164
B. The Constitution (Ninety Fifth Amendment) Act, 2009	2. Amendment in Article 334
C. The Constitution (Ninety Sixth Amendment) Act, 2011	3. Amendment in Eighth Schedule
D. The Constitution (One hundred third Amendment) Act, 2019	4. Amendment in Article 15

Codes :

A	B	C	D
(a) 1	2	3	4
(b) 1	2	4	3
(c) 1	3	4	2
(d) 1	4	3	2

U.P. R.O./A.R.O. (Mains) 2016

Ans. (a)

The correct matched order is as follows:

List-I (Act)	List-II (Amendment)
A. The Constitution (Ninety Fourth Amendment) Act, 2006	1. Amendment in Article 164
B. The Constitution (Ninety Fifth Amendment) Act, 2009	2. Amendment in Article 334
C. The Constitution (Ninety Sixth Amendment) Act, 2011	3. Amendment in Eighth Schedule
D. The Constitution (One hundred third Amendment) Act, 2019	4. Amendment in Article 15

71. President Ram nath Kovind granted assent to which Constitutional Amendment Act on 18th August, 2021?

- (a) 106th (b) 107th
(c) 108th (d) 105th

R.A.S./R.T.S. (Pre) 2021

Ans. (d)

President Ram Nath Kovind granted assent to 105th Constitutional Amendment Act, 2021 on 18th August, 2021. It empowers states to identify and specify the Socially and Educationally Backward Class (SEBC). As per the Act, every State or Union territory may, by law, prepare and maintain, for its own purposes, a list of socially and educationally backward classes, entries in which may be different from the Central List.

72. Consider the following and arrange these in chronological order:

I. Golak Nath Case

II. Keshavanand Bharti Case

III. 24th Constitution Amendment Act

IV. 42nd Constitution Amendment Act

Select the correct answer from the codes given below.

Codes:

- (a) I, III, II, IV (b) I, II, III, IV
(c) III, I, II, IV (d) III, I, IV, II

U.P.P.C.S. (Pre) 2021

Ans. (a)

Golak Nath case was decided on 27 February 1967. Keshavanand Bharti Case was decided in 1973. The Constitution (Twenty-Fourth Amendment) Act, 1971 was passed on 5 November 1971. The Constitution (Forty second Amendment) Act, 1976 was passed in 1976. Hence, correct answer is option (a).

73. In which of the following cases the Supreme Court limited the power of Parliament to amend the Constitution for the first time?

- (a) A.K. Gopalan Vs. The State of Madras
(b) Golaknath Vs. The State of Punjab
(c) Keshavananda Bharati Vs. The State of Kerala
(d) Minerva Mills Vs. The Union of India

U.P.P.C.S. (Mains) 2002

Ans. (b)

The Supreme Court limited the power of Parliament to amend the Constitution for the first time in the case of Golaknath Vs. the State of Punjab, 1967.

74. The Keshavananda Bharati Case is important because-

- (a) It sets aside the orders of the executive
(b) The Supreme Court interpreted the basic features of the Constitution
(c) It brought the Union Government in the dock.
(d) None of the above

U.P.P.C.S. (Pre) 2005

Ans. (b)

The Supreme Court laid down the 'Basic Structure Doctrine' in the case of Keshavananda Bharati Vs State of Kerala, 1973. According to this doctrine, Parliament can amend the Constitution including the fundamental rights but some of the provisions of the Constitution of India which form the basic structure of the Constitution are not amendable by the Parliament by exercising its amending power under Article 368.

75. In which case(s) did the Supreme Court of India give for the first time the doctrine of 'basic structure' of the Constitution?

- (a) Golaknath vs. State of Punjab
(b) Kesavananda Bharati vs. State of Kerala
(c) Minerva Mills vs. Union of India
(d) Both (A) and (B)

69th B.P.S.C. (Pre) 2023

Ans. (b)

The Supreme Court of India examined the concept of the "Basic structure" of the constitution for the first time in Kesavananda Bharti v. State of Kerala in 1973. Significantly, the Supreme Court reversed its decision in the Golak Nath case in this instance. It declared that Parliament has the authority to restrict or eliminate any of the Fundamental Rights and confirmed the legality of the 24th Constitution Amendment Act. It also established a new theory regarding the "basic structure" or "basic features" of the Constitution. It decided that Parliament could not change the "basic structure" of the Constitution using its constituent power under Article 368. This implies that a Fundamental Right that is a component of the Constitution's "basic structure" cannot be restricted or eliminated by the Parliament.

76. The concept of 'Basic Structure of the Constitution' was propounded by the Supreme Court in the case of

- (a) Golaknath vs State of Punjab – 1967
(b) Yusuf vs State of Bombay – 1954

- (c) Keshvanand Bharti vs State of Kerala – 1973
(d) Chitralkha vs State of Mysore – 1964

U.P.P.C.S. (Pre) 2022

Ans. (c)

See the explanation of the above question.

77. The doctrine of 'basic structure' in the context of Indian Constitution was propounded in which of the following cases for the first time?

- (a) Sankari Prasad V. Union of India
(b) Champakam Dorairajan V. State of Madras.
(c) Golaknath V. State of Punjab
(d) Kesavananda Bharati V. State of Kerala

M.P.P.C.S. (Pre) 2025

Ans. (d)

See the explanation of the above question.

78. The Supreme Court of India enunciated the doctrine of 'Basic Structure of the Constitution' in

- (a) The Golaknath case in 1967
(b) The Sajjan Singh case in 1965
(c) The Shankari Prasad case in 1951
(d) The Keshavananda Bharati case in 1973

U.P.P.C.S. (Pre) 2016

U.P.P.C.S. (Pre) 2020

Ans. (d)

See the explanation of the above question.

79. In India, who is competent to amend Fundamental Rights of the citizens?

- (a) Lok Sabha (b) Rajya Sabha
(c) Parliament (d) Supreme Court

U.P.P.C.S. (Pre) 2016

Ans. (c)

See the explanation of the above question.

80. The basic structure theory of the Constitution of India implies that –

- (a) Certain features of the Constitution are so essential to it that they cannot be abrogated.
(b) Fundamental rights cannot be abridged or taken away.
(c) The Constitution cannot be amended except in accordance with the procedure laid down in Article 368.
(d) The Preamble of the Constitution cannot be amended for it is not a part of the Constitution and at the same time represents its real spirit.

I.A.S. (Pre) 1994

Ans. (a)

The basic structure theory of the Constitution of India implies that certain features of the Constitution are so essential to it that they cannot be abrogated. The Supreme Court made it clear in its judgment in the case of Keshavananda Bharati Vs State of Kerala, 1973 that there are certain basic features of the Constitution which cannot be amended in any case.

81. Which Amendment of the Constitution provides that no law passed to give effect to Directive Principles of State Policy contained in Articles 39(b) & (c) shall be deemed to be void on the ground that it abridges the rights conferred by Articles 14 and 19 ?

- (a) 25th Amendment (b) 28th Amendment
(c) 42nd Amendment (d) 44th Amendment

U.P.P.C.S. (Mains) 2009

Ans. (a)

25th Amendment of the Constitution, 1971 provided that no law passed to give effect to Directive Principles of State Policy contained in Articles 39(b) and (c) shall be void on the ground that it abridges the rights conferred by Articles 14, 19 or 31 (Article 31- was repealed by 44th Amendments Act- 1978).

82. Consider the following statements:

- I. Through 44th Constitutional Amendment, 1978 all the Directive Principles of State Policy have been given preference over Fundamental Rights mentioned in Articles 14 and 19.**
II. Supreme Court has laid down in its verdict in Minerva Mills Case, 1980 that the preference given only to Directive Principles of State Policy mentioned in Article 39(b) and 39(c) over Fundamental Rights mentioned in Articles 14 and 19 is Constitutional.

- (a) Neither I nor II is correct.
(b) Only I is correct.
(c) Only II is correct.
(d) Both I and II are correct.

R.A.S./R.T.S. (Pre) 2013

Ans. (c)

Directive Principles of State Policy were given preference over Fundamental rights mentioned in Article 14, 19 and 31 through 42nd Constitutional Amendment Act, 1976. Although the Supreme Court in its verdict in Minerva Mills case termed it unconstitutional, nevertheless it held that fundamental rights mentioned in Articles 14 and 19 have been subjected to Directive Principles enshrined in Articles 39(b) and 39(c).

83. Match List-A with List-B and identify the correct answer from the code given below :

List- A (Case)	List B (AmendmentChallenged)
(A) Indira Gandhi V. Raj Narain	(i) 42 nd Amendment
(B) Minerva Mills V. Union of India	(ii) 52 nd Amendment
(C) Kihoto Hollohan V. Zachillu	(iii) 39 th Amendment
(D) P. Sambamurthy V. State of A.P.	(iv) 32 nd Amendment

Codes :

- | | | | |
|----------------------------|-------|-------|------|
| (A) | (B) | (C) | (D) |
| (a) (i) | (iii) | (iv) | (ii) |
| (b) (ii) | (iii) | (i) | (iv) |
| (c) (iv) | (ii) | (iii) | (i) |
| (d) (iii) | (i) | (ii) | (iv) |
| (e) Question not attempted | | | |

Raj. P.C.S. (Pre) 2024

Ans. (d)

The Correct matches of the lists is as follows-

List- A (Case)	List B (Amendment Challenged)
Indira Gandhi V. Raj Narain (1975)	39 th Amendment
Minerva Mills V. Union of India (1980)	42 nd Amendment
Kihoto Hollohan V. Zachillu (1993)	52 nd Amendment
P. Sambamurthy V. State of A.P. (1987)	32 nd Amendment

84. Consider the following statements regarding 'Nari Shakti Vandan Adhiniyam':

- Provisions will come into effect from the 18th Lok Sabha.
- This will be in force for 15 years after becoming an Act.
- There are provisions for the reservation of seats for Scheduled Castes Women within the quota reserved for the Scheduled Castes.

Which of the statements given above are correct?

- | | |
|------------------|------------------|
| (a) 1, 2 and 3 | (b) 1 and 2 only |
| (c) 2 and 3 only | (d) 1 and 3 only |

I.A.S. (Pre) 2024

Ans. (c)

The Constitution (One Hundred and Sixth Amendment) Act, 2023 (also known as "Nari Shakti Vandan Adhiniyam") provides that, as nearly as may be, one-third of the total number of seats to be filled by direct election in Lok Sabha, Legislative Assembly of every State, and the Legislative

Assembly of the NCT of Delhi shall be reserved for women, including those reserved for SCs and STs.

The provisions relating to the reservation of seats for women in the House of the People, the Legislative Assembly of a State and the Legislative Assembly of the NCT of Delhi shall come into effect after an exercise of delimitation is undertaken for this purpose after the relevant figures for the first census taken after commencement of the Constitution (One Hundred and Sixth Amendment) Act, 2023 have been published and shall cease to have effect on the expiration of a period of fifteen years from such commencement. However, the reservation of seats for women shall continue till such date as the Parliament may by law determine. Hence, statement 1 is incorrect while statement 2 is correct.

As per the Act, as nearly as may be, one-third of the total number of seats reserved for the Scheduled Castes or the Scheduled Tribes in Lok Sabha, Legislative Assembly of every State, and the Legislative Assembly of the NCT of Delhi shall be reserved for women belonging to the Scheduled Castes or the Scheduled Tribes. Hence, statement 3 is correct.

85. The Constitution (98th Amendment) Bill is related to:

- Empowering the centre to levy and appropriate service tax
- Constitution of the National Judicial Commission
- Readjustment of electoral constituencies on the basis of the population census 2001
- The demarcation of new boundaries between States.

I.A.S. (Pre) 2005

Ans. (b)

98th Constitutional Amendment Bill was presented by Arun Jaitley, the former Minister of Law and Justice in the NDA Government.

86. How many Constitutional Amendments in India have been implemented up to 2013 ?

- | | |
|--------|--------|
| (a) 68 | (b) 78 |
| (c) 88 | (d) 98 |

U.P.P.C.S. (Mains) 2014

Ans. (d)

By May, 2013, 98 Constitutional Amendments had been implemented. Whereas by January, 2020, 104th Constitutional Amendment has been implemented.